



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-21-00197 / Meadowlark Estates, 2nd Filing Annexation
Date: June 14, 2021

Background:

The item for consideration is an *Annexation*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 6/14/2021
- Public Services Committee 6/22/2021
- Second reading 6/28/2021
- Public Services Committee 7/7/2021
- Third and final reading 7/12/2021

Related Items:

- Meadowlark Estates, 2nd Filing Zone Change (UDC-21-00198)
- Meadowlark Estates, 2nd Filing Preliminary Plat (UDC-21-00095)

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED NORTHEAST OF AND ADJACENT TO THE INTERSECTION OF DELL RANGE BOULEVARD AND WHITNEY ROAD.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

(a) That PKT Development, LLC, owners of:

A parcel of land located in the southwest one-quarter of Section 24, Township 14 North Range 66 West of the 6th Principal Meridian; being more particularly described as follows:

Commencing at the City of Cheyenne control point “Dell Range” thence N74°53'24”E a distance of 874.14 feet to a point on the northerly right of way line of Dell Range Boulevard being the true point of beginning, thence along north right of way line of Dell Range Boulevard N89°44'57”W a distance of 1748.53 feet to a point; thence N00°26'28”E a distance of 865.33 feet to a point; thence S56°16'47”E a distance of 187.03 feet to a point; thence S56°14'01”E a distance of 252.18 feet to a point; thence S56°12'59”E a distance of 295.28 feet to a point; thence S56°13'08”E a distance of 303.74 feet to a point; thence S89°50'57”E a distance of 312.23 to a point; thence S89°52'00”E a distance of 318.17 feet to a point; thence S60°00'18”E a distance of 345.22 feet; thence S22°34'36”W distance of 131.84 to the point of beginning.

have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and

- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Adam E. Deschler, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 12045; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned MU Mixed Use and LR Low Density Residential by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for

Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

KRISTINA F. JONES, CITY CLERK

published: _____



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CITY OF CHEYENNE GOVERNING BODY

June 14, 2021

STAFF REPORT

FILE: UDC-21-00197: Annexation of Meadowlark Estates, 2nd Filing

REQUEST: An annexation of 17.8 acres of land (21.8 if Dell Range right-of-way is included)

LOCATION: Northeast of and adjacent to the intersection of Dell Range Boulevard and Whitney Road.

APPLICANT: PKT Development LLC – Butch Tilton

AGENT: Bruce Perryman, AVI, PC

OWNER: Meadowlark Estates LLC, c/o PKT Development LLC

PURPOSE: To allow future urban-level development

PREPARED BY: Seth Lloyd, Planner II – Development



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne
- East Dell Range Blvd / US 30 Corridor Study
- Whitney Road Corridor Plan

BACKGROUND:

The applicant is requesting annexing of 17.8 acres of land for future residential and commercial development. The County Assessor presently shows the tract of land as part of one larger unplatted parcel. The land is currently undeveloped in the County. A zone change is proposed concurrently with this annexation. Both applications are anticipated to come to final consideration before the Governing Body at the same meeting.

Land annexed to the City requires a City zone. The petition to annex has been accompanied by a submission to change the zoning from County MU Mixed-Use and County LR Low-density Residential to the City zones of CB Community Business, LR Low-density Residential, and MR Medium-density Residential. The purpose of this annexation is to allow future urban development under the City's jurisdiction. A preliminary plat for the area, with lots and blocks designed for residential and commercial development, has also been submitted. It is anticipated that a final plat would come before the Governing Body within a year of this annexation.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Transition Residential, Mixed-use Commercial	County LR, County MU	Undeveloped
North	Urban Transition Residential	County LR, County AR	Rural residential
South	Mixed-use Commercial	County MU, County NB	Rural residential, Service, Commercial
East	Urban Transition Residential	County LR, County AR	Rural residential
West	Urban Residential, Mixed-use Commercial	County A-2	Undeveloped

The property is currently zoned MU Mixed-Use and LR Low-density Residential in the County. The property is concurrently proposed to be annexed and rezoned to the CB Community Business, LR Low-density Residential, and MR Medium-density Residential zones. The CB zone is intended for retail, employment, service and civic uses that may serve a number of residential neighborhoods. Typically, areas zoned CB are expected to be more automobile-oriented and serve the region. Commercial development at this intersection is anticipated by the properties' mixed-use future land use designation, and any commercial development at this intersection would likely have a regional service area (including the surrounding rural and low-to-medium density residential developments). Both the LR and MR zones are intended for residential development with access to public infrastructure and city services. Low or medium density residential development is appropriate at this location.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]

The annexation of this property will increase the health, safety, and welfare of the occupants of future development once it is built. By being in City limits, the property will receive access to City Fire and Police and sanitation services. The property will also be connected to City water and sanitary sewer instead of having wells and septic systems.

The application **complies** with this review criterion.

2) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]

This property, once developed, will constitute a natural, geographic, economic, and social part of the city. The contiguity to the west and the proximity to urban-style development to the south makes the parcel a natural geographic part of the City. The development of this property will benefit those who live within the City and will be a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation. City water and sewer lines exist in the vicinity and could be extended with the development of the property (the preliminary plat associated with this annexation shows utility extensions).

The application **complies** with this review criterion.

4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]

The area proposed for annexation are about 18.2% contiguous, along the western edge.

The application **complies** with this review criterion.

- 5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

- 6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]

A certified mailing was made to the landowners and public utilities on May 14, 2021. The public hearing for this annexation is scheduled for June 14, 2021. Twenty (20) business days prior to the announced public hearing is May 14, 2021. The earliest confirmation of delivery was dated May 17, 2021.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne
- East Dell Range Blvd / US 30 Corridor Study
- Whitney Road Corridor Plan

The Future Land Use Map of PlanCheyenne, as updated by Connect 2045, anticipates this area of the community to develop with a mix of commercial and lower-density urban residential styles of development. These areas are expected to develop with full access to urban services – such areas are best served by being within City limits. Policies in PlanCheyenne support development within the Urban Service Boundary and the utilization of existing infrastructure.

The East Dell Range Blvd / US 30 Corridor Study and the Whitney Road Corridor Plan both anticipate that this area would develop with urban-style commercial and residential uses. Urban-style uses are best served by being within City limits and connecting to City services.

STAFF REVIEW:

Through the review process, the following comments were received:

- Annexation should bring adjacent Dell Range Boulevard into city limits

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

The proposed annexation is a natural extension of the City, is contiguous to the current City limits, and services typically available to urban areas are available to this property.

STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property. Staff recommends the inclusion of the adjacent portion of Dell Range right-of-way in the annexation.

ATTACHMENTS:

1. Aerial, Current City Limits, and Future Land Use Map
2. Submitted Application
3. Applicant-submitted annexation map
4. Supporting photos

Meadowlark Estates, 2nd Filing Annexation

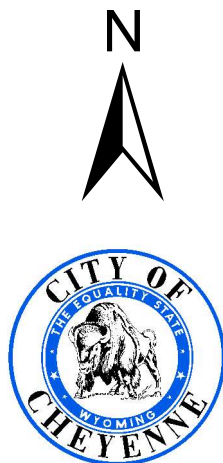
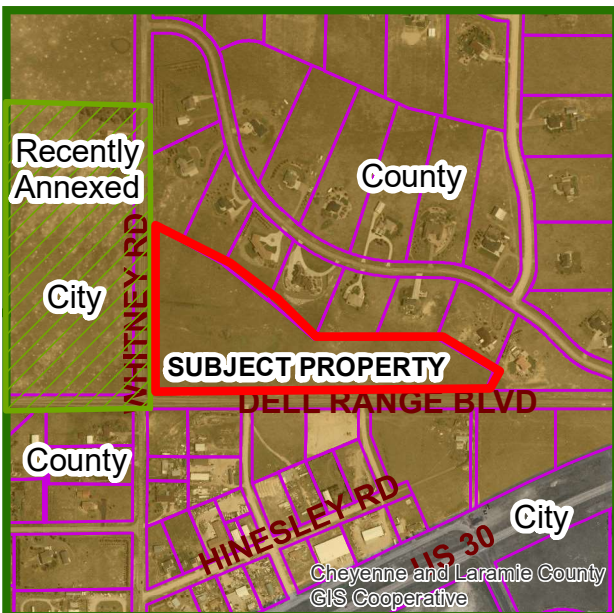


Application Number
Annexation
UDC-21-00197

Applicant: AVI, PC
Bruce Perryman
Owner: PKT Development, LLC

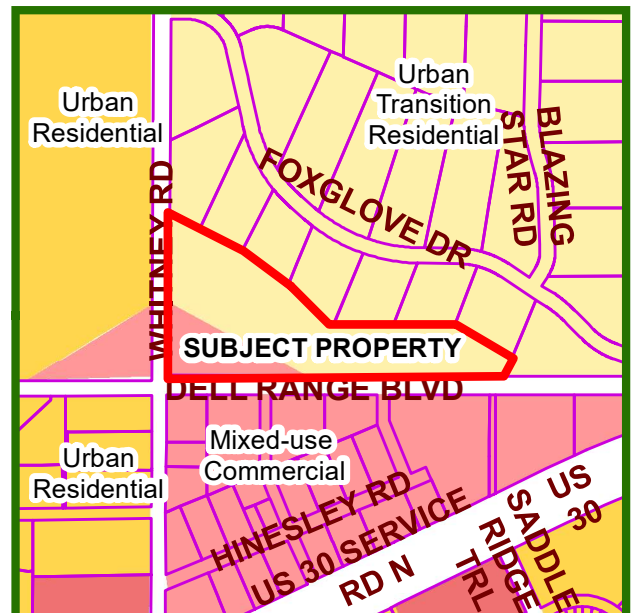
0 800 1,600
Feet
Scale applies to above map only

Current City Limits



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



Planning and Development: Annexation Application

Submission date: **5 May 2021, 8:09AM**
Receipt number: **12**
Related form version: **8**

General Information

Applicant Name:	PKT Development
Applicant Address:	9440 Kentucky St
Applicant City:	Cheyenne
Applicant State:	WY
Applicant Zip Code:	82009
Applicant Phone:	307-630-7643
Applicant Email	butch.tilton@yahoo.com
Representative Name:	AVlpc
Representative Address:	1103 Old Town Lane, Suite 101
Representative City	Cheyenne
Representative State:	WY
Representative Zip Code:	82009
Representative Phone:	307-637-6017
Representative Email:	perryman@avipc.com
Owner Name:	Butch (Ken) Tilton
Owner Address:	9440 Kentucky St.
Owner City:	Cheyenne

Owner State:	WY
Owner Zip Code:	82009
Owner Phone:	307-630-7643
Owner Email:	butch.tilton@yahoo.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	LOA Meadowlark Estates.pdf
Project Location (Street Address or General Location):	Foxglove Dr., Cheyenne, WY
Assessor's Parcel ID number(s)	
Total Project Area	17.12
Current Zoning	County, LR, MU
Proposed Zoning	LR - Low-density Residential CB - Community Business MUB - Mixed-use Business Emphasis

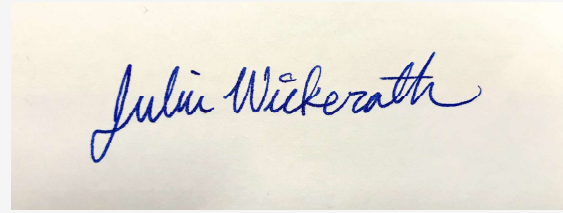
Application-Specific Information

For platted lots, provide legal description. If unplatted, type "unplatted."	unplatted
Formal Annexation Petition	4469 Formal Annexation Petition.pdf
Board of Public Utilities Clearance Form	Meadowlark Estates BOPU Clearance.pdf
Annexation Map	4469 ANNEXATION.pdf

Signature / Certification

Applicant Signature

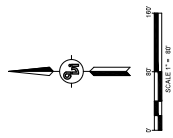
Name of signatory: Julia Wickerath



Uploaded signature image: [signature.jpg](#)

Please enter an email address for an email receipt.

jwickerath@avipc.com



WYOMING
PROFESSIONAL LAND SURVEYOR
JAN 1 2008

MEADOWLARK ESTATES 2ND FILING
A REPLAT OF TRACT 1 AND A PORTION OF TRACTS 2 - 9 OF MEADOWLARK
ESTATES AND BEING SITUATED IN A PORTION OF THE SW¼ OF SECTION
24, T.14N., R.65W., 6th P.M., LARAMIE COUNTY, WYOMING
PREPARED APRIL 2021

N., 6th P.M., LARAMIE CO.
PREPARED APRIL 2021

APPROVED BY THE CITY COUNCIL OF THE CITY OF CHEYENNE, THIS _____ DAY OF _____, 20__.

CERTIFICATE OF SURVEYOR

I, ADAM E. DESCHLER, A PROFESSIONAL LAND SURVEYOR LICENSED IN THE STATE OF WYOMING DO HEREBY CERTIFY THAT THIS ANNOTATION MAP WAS PREPARED FROM THE RECORDS AND FIELD NOTES OF A SURVEY CONDUCTED BY ME OR UNDER MY DIRECT SUPERVISION AND THAT ALL DIMENSIONS AND OTHER DETAILS ARE CORRECT TO THE BEST OF MY KNOWLEDGE AND BELIEF.

GROUND COORDINATES SHOWN ARE BASED ON US STATE PLANE 1983, WYOMING STATE PLANE EAST FIPZONE 4801 N.Y. E.

STATE PLANE N = (140,810.15+100000)*SF = 240,729.70
STATE PLANE E = (277,801.14+500000)*SF = 777,541.29

THE FOLLOWING IS A DESCRIPTION FOR A PARCEL OF LAND LOCATED IN THE SOUTHWEST ONE-QUARTER OF SECTION 24, TOWNSHIP 14 NORTH RANGE 66 WEST OF THE 6TH PRINCIPAL MERIDIAN.

COMMENCING AT THE CITY OF CHEYERNE CONTROL POINT "DELL RANGE," THENCE
N74°53'24"E A DISTANCE OF 874.14 FEET TO A POINT ON THE NORTHERLY RIGHT OF WAY
LINE OF DELL RANGE BOULEVARD BEING THE TRUE POINT OF BEGINNING.

THENCE ALONG NORTH RIGHT-OF-WAY LINE OF DELL RANGE BOULEVARD NBR. 457'4" V.
TO A POINT, THENCE S89°16'45"E A DISTANCE OF 162.00 FEET TO A POINT, THENCE
S01°40'0"E A DISTANCE OF 250.18 FEET TO A POINT, THENCE S59°12'55"E A DISTANCE OF
228.20 FEET TO A POINT, THENCE S89°13'05"E A DISTANCE OF 303.74 FEET TO A POINT,
THENCE S89°50'59"E A DISTANCE OF 512.23 FEET TO A POINT, THENCE S89°52'00"E A DISTANCE
OF 316.17 FEET TO A POINT, THENCE S00°07'18"E A DISTANCE OF 346.22 FEET, THENCE
S22°40'59" A DISTANCE OF 151.84 FEET TO A POINT OF BEGINNING.

SAD PARCEL CONTAINS 17.12 ACRES MORE OR LESS.

NOTES:

- FEMA FLOODPLAIN IS NOT APPLICABLE TO THIS MAP.

ZONING.

ZONING:
CURRENT ZONING : COUNTY, MU, LR
PROPOSED ZONING : CITY, LR, MUB, CB



